

HOUSE No. 4745

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 17, 2025.

The committee on Education, to whom was referred the petition (accompanied by bill, House, No. 549) of David F. DeCoste and Geoffrey Gordon for legislation to regulate the use of mobile communication devices in educational institutions; the petition (accompanied by bill, House, No. 574) of Carole A. Fiola and Patrick Joseph Kearney that the Department of Elementary and Secondary Education be authorized to establish a policy that provides for when a student's use of a student's cellphone; the petition (accompanied by bill, House, No. 666) of Alice Hanlon Peisch, Andrea Joy Campbell and others relative to the use of personal electronic devices on school grounds; the petition (accompanied by bill, House, No. 696) of Adam J. Scanlon for an investigation by a special commission (including members of the General Court) relative to the presence of students' phones in schools and classrooms and their effect on educational outcomes and student mental health; the petition (accompanied by bill, House, No. 715) of Joshua Tarsky for legislation to prohibit the use of personal electronic devices by students during the school day; and the petition (accompanied by bill, House, No. 720) of Jeffrey Rosario Turco for legislation to prohibit cell phone or other personal electronic device usage by students during the school day, reports recommending that the accompanying bill (House, No. 4745) ought to be pass.

For the committee,

KENNETH I. GORDON.

HOUSE No. 4745

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting safe technology use and distraction-free education for youth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 69 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 40. (a) Definitions.

4 (1) For the purposes of this section, “personal electronic device” shall mean any
5 portable electronic device that is capable of:

6 (i) providing voice communication, text messaging or other data communication
7 between 2 or more parties or devices; or

8 (ii) connecting to the internet, a smartphone or other personal electronic device, a
9 cellular or Wi-Fi network, including, but not limited to, mobile phones, tablets, laptops,
10 smartwatches and Bluetooth enabled devices; provided, however, personal electronic device
11 shall not include school issued or school-sanctioned devices used for a legitimate educational
12 purpose.

(2) For purposes of this section, “department” shall mean the Department of Elementary and Secondary Education.

(3) For purposes of this section, “district” shall include a public school district, a public vocational school district, a public regional school district, and a charter school district.

(4) For purposes of this section, “school day” shall mean each day of the school year on which students enrolled in the schools of a school district are engaged in academic and career and technical instruction planned by and under the direction of the school. The “school day” begins at any particular school upon the arrival of its first student and ends upon the dismissal of students from the last class of the day, including any time between classes, in lunch or other non-instructional times and in any advisory or meetings with teachers, counselors or administrators.

(b)(1) The department shall provide guidance, recommendations and a model policy to assist schools and districts with developing and implementing effective policies regarding the prohibition of the use of personal electronic devices on school grounds during the school day and during school-sponsored activities during the school day as required under section 102 of chapter 71. Such guidance, recommendations and model policy, shall include, but not be limited to:

(i) provisions preventing personal use of district-issued or district-sanctioned devices;

(ii) provisions preventing the use of personal electronic devices during the school day and during school sponsored activities during the school day;

(ii) options for secure storage of personal electronic devices during the school day, or other methods of rendering personal electronic devices inoperable or unavailable on school grounds during the school day;

(iii) at least one method for parents and guardians of students to contact students during the school day, including policies for emergency situations or for a student to contact their parent or caregiver during the school day; and

(iv) effective enforcement provisions to ensure compliance with the model policy; provided, however, that such enforcement provisions shall contain practical safeguards to prevent inequitable discipline and provided further that discipline for noncompliance shall not include the expulsion or suspension of a student solely due to noncompliance with this section.

(2) Prior to finalizing recommendations, guidance and model policy, the department shall solicit public input.

(3) The guidance, recommendations and model policy issued pursuant to this section shall be made publicly available on the department's website.

(4) The department shall annually review and update the guidance, recommendations and model policy issued under this section to reflect applicable research and best practices, including or in addition to any technological advances applicable to this section, including technology that may render a personal electronic device inoperable on school grounds, as determined by the commissioner.

(5) Each public school or district shall annually file its personal electronic device use policy not later than September 1 with the department in a manner and form determined by the department.

SECTION 2. Chapter 71 of the General Laws is hereby further amended by adding the following section:

Section 102. (a) Each district shall have a policy regarding the prohibition of personal electronic devices on school grounds during the school day and during school-sponsored activities during the school day as defined by section 40(a)(3) of Chapter 69 to reduce distractions, maintain environments focused on learning and protect the privacy and safety of students and staff. Each public school shall notify the parents or guardians of all students attending the school of the policy. The policy shall include, but not be limited to, prohibition of the use of personal electronic devices on school grounds during the school day and during school-sponsored activities during the school day as required under section 102 of chapter 71. Such guidance, recommendations and model policy, shall include, but not be limited to:

(i) provisions preventing the use of personal electronic devices by a student during the school day as defined by Section 40(a)(3) of Chapter 69; (ii) options for secure storage of personal electronic devices during the school day, or other methods of rendering personal electronic devices inoperable or unavailable on school grounds during the school day; (iii) at least one method for parents and guardians of students to contact students during the school day, including policies for emergency situations or for a student to contact their parent or caregiver during the school day; and

(iv) enforcement provisions to ensure compliance with the policy by students; provided, however, that such enforcement provisions shall contain practical safeguards to prevent inequitable discipline and provided further that discipline for noncompliance shall not include the expulsion or suspension of a student solely due to noncompliance with this section.

(b) Notwithstanding subsection (a), a district may permit a student to use and possess a personal electronic device, if:

(i) used in accordance with an individualized education program or an education plan implemented pursuant to section 504 of the federal Rehabilitation Act of 1973, 29 U.S.C. 701 et seq., in which case a district may authorize a student to use a personal electronic device only to the extent necessary to address the exception made necessary by the individualized education program or plan;

(ii) necessary under any accommodations under state or federal law, including but limited to Title II of the Americans With Disabilities Act, 42 U.S.C. Sections 12131 et seq., in which case a district may authorize a student to use a personal electronic device only to the extent necessary to address the accommodation;

(iii) a healthcare provider provides in writing that the possession or use of a personal electronic device is necessary to treat a health condition of a student, in which case a district may authorize a student to use a personal electronic device only to the extent necessary to address the health condition referenced by the healthcare provider; or

(iv) the district determines the existence of an emergency necessitating the safe use by a student or students of personal electronic devices.

(b) The policy required under subsection (a) shall specify the method by which the district prohibits student access to personal electronic devices. The following methods shall be deemed sufficient methods of prohibiting student access to personal electronic devices: (i) secure storage of personal electronic devices during the school day; (ii) the use of technology that renders the personal electronic device inoperable, or (iii) other methods which shall require approval by the department.

(c) The policy required under subsection (a) shall include enforcement provisions intended to ensure compliance with the policy; provided, however, that such enforcement provisions shall contain practical safeguards to prevent inequitable discipline.

(d) The policy and any standards and rules enforcing the policy shall be prescribed by the school committee of a municipality, regional school district or vocational technical school in conjunction with the superintendent or the board of trustees, in the case of a commonwealth charter school.

(e) Each district shall file its school personal electronic device use policy with the department in a manner and form prescribed by the department by September 1, 2026. If no policy is approved by the school district or charter school district by September 1, 2026, the department's model policy shall go into effect until such time as a local policy is approved.

(f) Nothing in this section shall limit a district from setting restrictions or standards for use of personal electronic devices on school grounds or during school-sanctioned activities beyond the school day.

SECTION 3. (a) The department shall issue a request for proposals for a pilot program in which at least 1 but no more than 10 districts may participate that shall provide for a technological means of rendering a personal electronic device inoperable on school grounds during the school day. The department may select one or more than one bidder to provide technological services for the pilot program. In issuing the request for proposals, the department shall require entities to demonstrate the ability to enable all personal electronic devices within a participating school: (i) to call 911, (ii) to enable any applications other than those providing talk or texting services as authorized by a district pursuant to district policy, and (iii) to enable any

120 application providing talk or texting services between a parent or guardian of a student and the
121 student of that parent or guardian if authorized by district policy. A district invited by the
122 department to participate in the pilot program may condition its participation on any policies and
123 procedures arranged by and between that school district and the technology provider
124 participating in the pilot program.

125 (b). The department shall further require that bidding entities demonstrate compliance
126 with federal and state privacy laws, including but not limited to 20 U.S.C. § 1232g, 15 U.S.C. §§
127 6501 et seq. and sections 34a through 34L, inclusive, of chapter 71; provided further the
128 department shall evaluate each response to ensure that a bidding entity shall not collect any data
129 from personal electronic devices except for the purposes of providing a technological means of
130 rendering the device inoperable during the school day, including but not limited to prohibited
131 purposes related to targeting advertising or the creation of digital profiles of individuals; and
132 provided further, that the entity shall be prohibited from selling, renting or distributing data
133 disclosed from personal electronic devices as part of its engagement and shall destroy all
134 disclosed data when no longer needed to provide a technological means of rendering personal
135 electronic devices inoperable during the school day or when a school district requests such
136 deletion. An entity awarded the contract pursuant to the request for proposal must include
137 provisions that will protect the data privacy of all users of personal electronic devices on which
138 any application or other media is downloaded, including but not limited to limitations on
139 collection, maintenance and use of any personal data except by the district itself.

140 (c). Within 180 days of the conclusion of the pilot program, the department, together with
141 the participating district, shall provide a report to the chairs of the joint committee on education
142 and the house and senate committees on ways and means addressing the experience of the

district or districts participating in the pilot program along with any recommendations concerning the continued use of the technological restrictions as a means of compliance with section 102 of Chapter 71. Any school district chosen to participate in the pilot program may choose to continue its use of any technological program made available to it during the pilot program, without interruption, bearing its own cost, provided that the privacy terms established in subsection (b) are incorporated into any subsequent agreement.

SECTION 4. Subject to appropriation, the department shall establish a grant program to assist districts with the implementation of the provisions of this section.

SECTION 5. Not later than September 1, 2028, the department of elementary and secondary education shall report to the chairs of the joint committee on education and the house and senate committees on ways and means on the implementation of the personal electronic device use policies in schools pursuant to section 102 of chapter 71 of the General Laws.

SECTION 6. Chapter 71 of the General Laws is hereby amended by inserting after Section 102 the following section:

Section 103. (a) Each district shall have a policy regarding the education of its students about the social, emotional and physical risks and harms of social media use. The district shall notify the parents or guardians of all students attending the school of the policy and shall post the policy on the school's website. The policy, and any standards and rules enforcing the policy, shall be prescribed by the school committee in conjunction with the superintendent, in the case of a school district or the board of trustees, in the case of a charter school.

(b) The department in consultation with the attorney general's office and the department of public health, shall provide guidance and recommendations to assist districts with developing

165 and implementing effective social media use education policies and shall make such guidance
166 and recommendations publicly available on the department's website. Guidance and
167 recommendations may include but shall not be limited to: (i) curriculum resources; (ii) guidance
168 on developing community norms regarding cell phone and social media use; (iii) guidance for
169 educating parents or guardians on managing their child's social media use; and (iv) recognizing
170 warning signs of the harmful effects of social media use and other available resources. Guidance
171 and recommendations may be reviewed and regularly updated to reflect applicable research and
172 best practices.

173 (c) Each school district and charter school shall file its social media use education policy
174 with the department of elementary and secondary education in a manner and form prescribed by
175 the department.

176 SECTION 7. Not later than September 1, 2028, the department of elementary and
177 secondary education, in consultation with the attorney general's office and the department of
178 public health, shall report to the chairs of the joint committee on education and the house and
179 senate committees on ways and means on the implementation and effect of the social media use
180 education policies in schools pursuant to section 103 of chapter 71 of the General Laws.